

Before the
FEDERAL MARITIME COMMISSION

Docket No. 24-21

PKDC, LLC

v.

CMA CGM S.A.

JOINT MOTION TO FURTHER EXTEND SCHEDULING DEADLINES

Pursuant to 46 C.F.R. §§ 502.69 and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant PKDC, LLC (“Complainant” or “PKDC”), and Respondent CMA CGM S.A. (“Respondent” or “CMA CGM” and, collectively with PKDC, the “Parties”), by their respective undersigned counsel, hereby submit this Joint Motion to Further Extend Scheduling Deadlines (“Motion”) to allow some additional time to complete discovery.

I. Background

Following entry of the original Scheduling Order in this matter, the Parties have been actively engaged in discovery. However, due to the complexity of the matter and the volume of discovery necessary, the Parties have sought several previous extensions. The last extension was granted on January 29, 2026. The January 29 Order Granting Complainant’s Motion to Further Extend Scheduling Deadlines requires the Parties to complete discovery on or before March 27, 2026. The Parties seek a two-week extension of the March 27 deadline to April 10, 2026, and corresponding two-week extensions of the remaining scheduling deadlines, as follows:

Original Date	Requested Date	Scheduling Deadline
March 27, 2026	April 10, 2026	Complete depositions of fact witnesses
March 27, 2026	April 10, 2026	Complete expert depositions

March 27, 2026	April 10, 2026	Close of discovery
April 27, 2026	May 11, 2026	Complainant's initial brief, proposed findings of fact, and appendix
May 27, 2026	June 10, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
June 8, 2026	June 22, 2026	Complainant's reply and responses to proposed findings of fact

The Parties have continued to engage in discovery. Respondent served its second Set of Interrogatories, to which the Complainant has responded and Complainant served its Second Set of Interrogatories and Second Request for Production of Documents on October 10, 2025. Respondent has now replied to Complainant's Second Requests, although that response was delayed for a variety reasons, some of which were detailed in the Parties last motion for an extension (such as unanticipated family matters) and others that have occurred since (a lingering illness suffered by counsel for one of the Parties).

Despite on-going communication and cooperation between the Parties, the Parties are forced to seek a short extension of the deadline to complete discovery, from March 27, 2026 to April 10, 2026. The Parties have been able to limit the number of depositions in this case to four (4). One of those was completed on March 23, 2026, and a second will be completed by the original deadline of March 27, 2026. However, due to the timing of the discovery responses, the schedules of counsel and the witnesses, as well as the Easter holiday, the two remaining depositions could not be scheduled until April 7 and April 10, respectively.

II. Argument

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any

pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause.” The Parties submit good cause exists in this instance.

FMC regulations require discovery to be completed within 150 days of a respondent’s answer (46 C.F.R. § 502.141(g)) which is sufficient time for many disputes. However, as explained in earlier motions, this matter involves a multitude of complex claims, a request for substantial reparations, and relevant discovery spanning multiple years. Given the breadth and complexity of the issues, extensive electronic document collection and production have been required, which is itself time-consuming and technically complex.

The Parties note that in complex matters such as the instant case, policy considerations favor allowing sufficient time to develop a complete evidentiary record. In *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2024 WL 4357751, at *1 (ALJ Sept. 23, 2024), it was emphasized that the policy and responsibility of the Commission, and by delegation of authority, the presiding judge, is to inquire into and consider all relevant facts. Adherence to a schedule should not override these policy considerations. *See also Anderson International Transport and Own Anderson - Possible Violations of Sections 8(a) and 19 of the Shipping Act of 1984*, Dkt. No. 07-02, 2009 WL 6084172, at *2 (FMC Dec. 4, 2009) (reopening the record because Commission precedent “favors the agency making its decision based on the most complete record available”).

Indeed, the FMC has recently allowed for additional time in similar instances. For example, a 62-day extension to complete discovery was granted in *One Banana North America Corp. v. Hapag-Lloyd AG and Hapag-Lloyd (America) LLC*, FMC Docket No. 22-03, Revised Scheduling Order, June 22, 2022; a 60-day extension to complete discovery was granted in *Intermodal Motor Carriers Conference, American Trucking Associations, Inc. v. Ocean Carrier Equipment Management Association Inc., et al*, FMC Docket No. 20-14, Amended

Scheduling Order, June 9, 2021; and a 60-day extension to complete discovery was in *Bed Bath & Beyond Inc., v. Yang Ming Marine Transport Corp.* FMC Docket No. 23-10, Revised Scheduling Order, Order on Motions, January 11, 2024.

The requested two-week extension of remaining scheduling deadlines will only briefly delay the overall schedule of the proceeding, and granting the extension would be consistent with past Commission practice. Moreover, the other factors described above and the difficulty of scheduling and conducting depositions (some of which involve witnesses based outside of the United States) during the Easter holiday season constitute good cause for granting the requested extension.

WHEREFORE, the Parties jointly pray that this joint Motion be granted and that the January 29 Amended Scheduling Order be revised as requested.

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A

COZEN O'CONNOR

/s/ Jason M. Kenner

Jason M. Kenner

Luke Mathers

286 Madison Avenue

Suite 1200

New York, NY 10017

Telephone: (212) 549-0137

Counsel for Complainant PKDC, LLC

/s/ Wayne R. Rohde

Wayne R. Rohde

Kathryn Sobotta 2001

M Street NW Suite 500

Washington, DC 20036

Telephone: (202) 463-2507

Counsel for Respondent CMA CGM S.A.

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